The cause was argued by *Coxe* and *Webster*, for the appellant ; and by *Jones* and *Crittenden*, for the appellees.

Catron, Justice, delivered the opinion of the court.—In October 1825, William Harris, of Montgomery, Alabama, made his will, devising to his two sons, William and Stephen, the tract of land in controversy, lying on Lake Jackson, in Florida. Stephen and William, at their father's death, were both minors ; and William soon after died, leaving two brothers and three sisters, who are his heirs ; and two of whom were infants when this bill was filed, and two of them married women. The land was unimproved and undivided. In the fall of 1835, William A. Carr, the complainant desired to purchase the land, and applied to Stephen W. Harris for the purpose, by letter ; he, Carr, residing in Georgia. The letter of Carr, opening the correspondence, is not in the record, but the answer to it is sufficiently explanatory. The answer is dated August 17th, 1835 ; in which Stephen W. Harris says, his father left the land to his young brother and himself, that his brother had died long since, and he had just come of age, and was entitled to half the land, which could be divided at any time ; "and my half," says he, "is for sale, but it has first to be divided ; my price for that is ten dollars per acre." "The remaining half is owned by the brother and sisters of said brother, and I believe they are willing to sell, and their price, I expect, is ten dollars. Before any part of the land, short of the whole tract, could be sold, it would first have to be divided ; the whole could be sold so, and our price is ten dollars."

The next letter from Stephen W. Harris to complainant, is dated December 15th, 1835, acknowledging the receipt of one, the day before, from com-
*78] plainant, requesting to be informed of the quantity of *the land. The answer stated it to be 2131¼ acres ; and proposed to take Carr's offer for it, with interest on the last note, having two years to run. On January 2d, 1836, Harris acknowledged the receipt of another letter from Carr, dated the 25th December, preceding. "I have," says he, "come to the determination to sell you the land, on the terms you mentioned :" and then asks to be informed when and where they shall meet to make the necessary arrangements. The letter of Carr of the 25th December, referred to, offers to exchange some lands of his in Georgia (which, he says, he had previously described), rated by him at $20,000, for the Florida lands, he giving $3000 difference ; or, he would make the same offer he had previously done. What this offer was, appears by Harris's letter of the 16th January 1836 ; and as this letter is the conclusion of the correspondence, so far as Harris was concerned, and is the principal evidence relied on to establish the agreement, it becomes necessary, for the purposes of its proper understanding, and to ascertain the sense in which the parties understood it, to set it forth, together with the answers to it, of the 3d and 19th of February.

"Mr. William A. Carr. Montgomery, January 16th, 1836.

"Sir :—Yours of the 12th instant is just received, and in reply have only to remark, that I will accede to your first proposition, as stated in my last letter : that is, one-third cash, the balance in two equal instalments, with a mortgage on the land—the last two payments to be made in cash—and as all the heirs live in the neighborhood of this place, it will be the only place